

**ORDER SHEET**  
**IN THE LAHORE HIGH COURT,**  
**MULTAN BENCH MULTAN**  
**JUDICIAL DEPARTMENT**

**CR No. 658 of 2018**

Abdul Razzaq etc  
**vs**  
Muhammad Ajmal Khan

| S.No. of<br>Order/<br>Proceeding | Date of<br>order/<br>proceeding | Order with signature of Judge and that of parties or<br>counsel where necessary |
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26.04.2018 Malik Muhammad Anwar Khan Awan, Advocate.

States that the appeal filed by the respondent was dismissed for non-deposit of process fee on 27.01.2018 which was restored on 07.02.2018. Simultaneously, the court through a separate order of even date issued notices to the petitioners (respondents therein) for 28.02.2018 and also directed the respondent to makeup the deficiency of the court fee, which order could not be passed as the appeal had already become barred by time and court could not direct the respondent to subsequently affix the court fee.

2. The order challenged by the petitioners is interim/interlocutory in nature and nothing has been decided that comes within the ambit of “a *case decided*” as envisaged in Section 115 of the CPC. Reliance in this regard is placed on **Mian Muhammad Luqman and 5**

**others vs. Farida Khanam and another** (1994 SCMR 1991) wherein it is held as under:

*“It is not denied by the respondents’ learned counsel that unless it is “a case decided” the High Court has no jurisdiction under section 115, C.P.C. to deal with the matter on civil Revisional side. On the specific point; whether, the order passed in this case by the trial court which was impugned before the High Court did constitute a “case decided” the learned counsel, although having remained for considerable time hesitant to admit that it did not constitute “a case decided” ultimately failed to satisfy the Court that it did constitute “a case decided.”*

The same principle has been reiterated in the judgment reported as **Nestle Milkpak Limited vs. Classic Needs Pakistan (Pvt.)Ltd and 3 others** (2006 SCMR 21).

3. In view of the above, this revision petition would not be maintainable. However, as the matter is still *sub judice* before the appellate court, the petitioners may raise any objection before it to be decided on its own merits.

4. ***Disposed of*** accordingly.

**(MUZAMIL AKHTAR SHABIR)**  
**JUDGE**

Naveed \*